IN THE NATIONAL COMPANY LAW TRIBUNAL

COURT-V, NEW DELHI

C.P.(CAA)/06(ND)2023
IN
CA (CAA)/82(ND)2022

Under Sections 230 to 232 of the Companies Act, 2013 read with Section 234 of the Companies Act, 2013 and Companies (Compromise, Arrangements and Amalgamation Rules, 2016).

In the matter of Scheme of Arrangement of Demerger

OF

IPE GLOBAL LIMITED,
A Company incorporated under the
Provisions of the Companies Act, 1956
Having its registered office at
B-84, Defence Colony, Bhishma Pitamah Marg,
New Delhi-110024, India,
CIN- U74140DL1998PLC097579

...PETITIONER No.1/ Demerged Company

AND

IPE GLOBAL VENTURES PRIVATE LIMITED,
A Company incorporated under the
Provisions of the Companies Act, 2013
Having its registered office at
B-84, Defence Colony, Bhishma Pitamah Marg,
New Delhi-110024, India,
CIN- U67190DL2022PTC393047

...PETITIONER No.2/ Resulting Company

Coram:

Shri P.S.N. Prasad : Member (Judicial)

Dr. Binod Kumar Sinha: Member (Technical)

Order Delivered on: 17.02.2023

ORDER

PER: Shri P.S.N. Prasad, Hon'ble Member (Judicial)

1. This Company Petition has been jointly filed by IPE Global Limited (Demerged Company) and IPE Global Ventures Private Limited (Resulting Company) under Sections 230-232 of the Companies Act, 2013, read with the Companies (Compromises, Arrangements and Amalgamation) Rules, 2016, and the National Company Law Tribunal Rules, 2016, for the purpose of the approval of the proposed Scheme of Arrangement between IPE Global Limited (Demerged Company) and IPE Global Ventures Private Limited (Resulting Company). The copy of the Scheme of Arrangement (hereinafter referred as the 'Scheme'), has been placed on record.

2. The Scheme of Arrangement is coming before us for admission and for fixing a date of hearing of the main Company Petition as well as for a direction in relation to publication in press to be effected and notices to be issued to the authorities concerned in relation to date of hearing of the Petition and calling for the objections, if any, to the proposed Scheme of Arrangement as contemplated between the Petitioner Companies.

3. From the records, it is seen that the First Motion Application seeking direction for dispensation/convening the meeting of Shareholders, Secured Creditors and Unsecured Creditors was filed by the Petitioner Company vide CA (CAA) No.82/(ND)/2022 and based on such company application moved under Sections 230-232 of the Companies Act, 2013, the requirement of convening the meetings of Equity Shareholders, Secured Creditors of both the Companies and Unsecured Creditors of the Resulting Company

were dispensed with and further directed to convene the meeting of the Unsecured Creditors of the Demerged Company vide order dated 16.11.2022 in CA (CAA) No.82/(ND)/2022.

4. This Tribunal vide its order dated 16.11.2022. had appointed Ms. Sumita Purkayastha, Former Member (T), NCLT as the chairperson of the meeting, Mr. Pranshu Singhal, Chartered Accountant as the Alternate Chairperson and Ms. Komal Gupta, Advocate, as the scrutinizer of the meeting of Unsecured Creditors of the Petitioner Company No.1.

5. It is submitted that the meeting was convened via Video Conferencing with the facility of remote e-voting on Thursday, 05 January, 2023 at 01:00 P.M. and that the remote e-voting period shall commence on Sunday, 01 January, 2023 at 10:00 A,M. and end on Wednesday, 04 January, 2023 at 5:00 P.M. and the chairperson had filed the Chairperson's Report on the meeting of Unsecured Creditors of the Demerged Company/Petitioner No.1, before this Hon'ble Tribunal on 09 January, 2023.

6. From the records, it is seen that the Chairperson in its report dated 09 January, 2023 had submitted that the scheme has been approved by the Unsecured Creditors of the Demerged Company/Petitioner No. 1 with requisite votes in favor of the scheme.

7. Further, vide order dated 16.11.2022 in CA (CAA) No.82/(ND)/2022, the petitioner Company was directed to serve notice of application upon (i) Central Government through the Regional Director (Northern Region), Ministry of Corporate Affairs, (ii) Registrar of Companies (NCT of Delhi & Haryana), Ministry of Corporate Affairs, (iii) Official Liquidator, attached to the Delhi High Court, (iv) Jurisdictional Income Tax Authorities (v) The

Securities and Exchange Board of India, (vi) Such other Sectoral Regulatory Authorities, which govern working of the companies involved in the scheme.

8. The notices of meeting of the Unsecured Creditors of Demerged Company were sent via e-mail to the abovementioned authorities, on 02.12.2022 and the said notice was published in the newspapers "Business Standard" (English, Delhi Edition) and "Business Standard" (Hindi, Delhi edition), on 05.12.2022.

9. The Petitioner Company had filed the compliance affidavit dated 23.12.2022 affirming the compliance of the order dated 16.11.2022 in CA (CAA) No.82/(ND)/2022 and the meeting of the Unsecured Creditors of the Demerged Company was held on 05.01.2023.

10. Thereafter such meeting, the Report of the Chairperson for the meeting of the Unsecured Creditors of the Demerged Company was filed before this Hon'ble Tribunal on 09.01.2023.

11. Thereafter, this petition on second motion is coming up before us for fixing a date of hearing as well as for other consequential directions in terms of provisions of Sections 230 to 232 of Companies Act, 2013 read with Rule 16 of the Companies (Compromise, Arrangements and Amalgamation) Rules, 2016. Accordingly, it is now hereby ordered as follows: -

i) Notice of the hearing of the main Company Petition shall be advertised in two newspapers namely, "Business Standard" (English, Delhi Edition) and "Business Standard" (Hindi, Delhi edition) not less than 10 days before the next date fixed for hearing the petition.

ii) In addition to the above public notice, the Petitioner Company shall serve the notice of the Petition on the

following Authorities namely, (i) Central Government through the Regional Director (Northern Region), Ministry of Corporate Affairs, (ii) Registrar of Companies (NCT of Delhi & Haryana), Ministry of Corporate Affairs, (iii) Official Liquidator, attached to the Delhi High Court, (iv) Jurisdictional Income Tax Authorities (v) The Securities and Exchange Board of India, (vi) Such other Sectoral Regulatory Authorities, which govern working of the companies involved in the scheme.

iii) Further, notice shall also be served to Objector(s) or to their representative, if any, as contemplated under Sub-Section (4) of Section 230 of the Act who may have made representation and who have desired to be heard in their representation along with a copy of the Petition and the Annexures filed therewith at least 15 days before the date fixed for hearing.

iv) All the Petitioner Companies shall at least 7 days before the date of hearing of the Petition file an affidavit of service in relation to paper publication effected as well as service of notices on the Authorities specified above including the Sectoral Regulator(s) as well as to Objectors, if any.

v) Objections, if any, to the Scheme contemplated by the authorities to whom notice has been given on or before the date of hearing fixed herein may be filed, failing which it will be considered that there is no objection to the approval of the Scheme on the part of the authorities by this Tribunal and subject to other conditions being satisfied as may be applicable under the Companies Act, 2013 and relevant rules framed thereunder.

vi) The Petitioner Companies shall individually comply with proviso to sub section (3) of Section 232 or proviso to sub section (7) of Section 230, as may be applicable under the circumstances on or before the date fixed for hearing by filing the certificate of Company's statutory auditor.

vii) The next date of hearing of the Petition shall be on 12.04.2023 for the consideration of the approval of the Scheme of Arrangement as contemplated between the Petitioner Companies.

Copy of the order be served to the parties.

Sd/-
DR. BINOD KUMAR SINHA
MEMBER (T)

Sd/-
SH. P.S.N PRASAD
MEMBER (J)